

12. 9:00 AM CASE NUMBER: C26-00308
CASE NAME: SYIMYK KALYKOV VS. CHRIS BRECHEISEN
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF CONCORD

TENTATIVE RULING:

This matter is **continued to November 2, 2026**.

Plaintiff's declaration in opposition to the demurrer is missing the attached exhibits. Further, Plaintiff has provided new facts in its opposition and the parties are ordered to meet and confer regarding whether Plaintiff should amend his complaint now and then the Defendants be permitted to demurrer to the amended complaint.

The parties shall engage in a meet and confer by Zoom or telephone no later than October 12, 2026. Defendants Contra Costa Transportation Authority and the City of Concord will file and serve a declaration by October 19, 2026. The declaration will confirm whether the meet and confer occurred and identify any items the parties were able to reach an agreement on, including whether they can stipulate to allow Plaintiff leave to amend the complaint. This declaration may also address whether Plaintiff gave Defendants an extension of time to answer as opposed to file a responsive pleading. Plaintiff may file and serve a declaration addressing the issue by October 26, 2026, and may include the exhibits referred in the declaration filed with the opposition. No further briefing is permitted.

13. 9:00 AM CASE NUMBER: C26-00467
CASE NAME: PETRO-ANALYTICAL, INC., VS. TANK-TEK ENVIRONMENTAL CORPORATION,
***HEARING ON MOTION IN RE: STRIKE THE CROSS-COMPLAINT OF TANK-TEK ENVIRONMENTAL CORPORATION**
FILED BY: PETRO-ANALYTICAL, INC.,
TENTATIVE RULING:

Before the Court is a motion by cross-defendant Petro-Analytical, Inc. to strike certain relief sought in the cross-complaint of Tank-Tek Environmental Corporation. For the reasons set forth, the motion is **GRANTED, WITH LEAVE TO AMEND**.

Background

Plaintiff and cross-defendant Petro-Analytical, Inc. ("Petro") filed a complaint against defendant and cross-complainant Tank-Tek Environmental Corporation ("Tank-Tek") for breach of contract and an accounting arising out of a written Gross Profit and Revenue Sharing Agreement. (Compl. ¶ 6.) Petro alleges Tank-Tek agreed to invoice clients referred to Tank-Tek by Petro, collect the invoices, and remit a share of the profits to Petro. (Compl. ¶ 7.) Petro alleges that Tank-Tek owes Petro \$214,088.07 for invoices through December 11, 2025 but claims damages for breach of the agreement estimated to be over \$500,000. (Compl. ¶¶ 10, 20.)

Tank-Tek filed a cross-complaint against Petro, alleging five causes of action. Tank-Tek alleges it had a "long-standing business relationship" with Petro, and that it had an oral contract with Petro to act as Petro's subcontractor for underground storage tank inspection, compliance and repairs. (X-Compl. ¶

5.) It alleges that within the last two years, there was an accrued amount owing to Tank-Tek of \$407,884.69. (X-Compl. ¶¶ 5, 6, 8, 10, 13.) Tank-Tek alleges a claim for breach of an oral contract (1st C/A), account stated (2nd C/A), open book account (3rd C/A), goods and services rendered (4th C/A), and unjust enrichment (5th C/A). Tank-Tek prays for recovery of "attorney' fees, expenses and costs of suit, as allowable by law" in paragraph 3 of the prayer for relief. Petro moves to strike the prayer for attorneys' fees as unsupported by law and the allegations of the cross-complaint.

Standards for Ruling on Motion to Strike

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc. § 436(a) and (b).) A court may strike allegations on the ground that the allegations "request[] relief not supported by the allegations of the complaint." (Code Civ. Proc. § 431.10(b)(3).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice. (Code Civ. Proc. § 437; *Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 ["A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true," citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Analysis

Code of Civil Procedure section 1021 recognizes a party's right to recover attorneys' fees based on a contractual right to such fees or as provided by statute. (*Trope v. Katz* (1995) 11 Cal.4th 274, 278-279 [stating California generally follows the American rule with each party to bear its own attorneys' fees, but that Code of Civil Procedure section 1021 allows parties to "contract out" of the American rule].) The cross-complaint alleges a breach of an oral contract, not a written contract with an attorneys' fees clause. (X-Compl. ¶¶ 5, 6, 8, 10, 13.) The cross-complaint itself does not cite or allege any contractual or statutory basis for recovery of attorneys' fees, but Tank-Tek asserts in its opposition to the motion that it can recover attorneys' fees on its open book account cause of action (3rd C/A) pursuant to Civil Code section 1717.5.

Civil Code section 1717.5 provides in pertinent part, "[I]n any action on a contract based on a book account, as defined in Section 337a of the Code of Civil Procedure, entered into on or after January 1, 1987, which does not provide for attorney's fees and costs, as provided in Section 1717, the party who is determined to be the party prevailing on the contract shall be entitled to reasonable attorney's fees, as provided below, in addition to other costs." (Civ. Code § 1717.5(a)(1).) While this statute may provide a basis for recovery of attorneys' fees on an open book account claim, the Court has issued concurrently a tentative ruling sustaining Petro's demurrer to Tank-Tek's open book account cause of action. Tank-Tek has not cited any other legal basis for recovery of attorneys' fees on any other cause of action.

Conclusion and Ruling

The motion to strike the request for attorney's fees is **GRANTED**; the phrase "attorney's fees" in paragraph 3 of the prayer for relief shall be stricken, **WITH LEAVE TO AMEND** to the extent Tank-Tek amends its third cause of action to state a valid cause of action for an open book account.

14. 9:00 AM CASE NUMBER: C26-00467
CASE NAME: PETRO-ANALYTICAL, INC., VS. TANK-TEK ENVIRONMENTAL CORPORATION,
HEARING ON DEMURRER TO: CROSS COMPLAINT
FILED BY: PETRO-ANALYTICAL, INC.,
TENTATIVE RULING:

Before the Court is a demurrer by cross-defendant Petro-Analytical, Inc. to the cross-complaint of Tank-Tek Environmental Corporation. For the reasons set forth, the Court rules on the demurrer as set forth in the conclusion below.

Background

Plaintiff and cross-defendant Petro-Analytical, Inc. ("Petro") filed a complaint against defendant and cross-complainant Tank-Tek Environmental Corporation ("Tank-Tek") for breach of contract and an accounting arising out of a written Gross Profit and Revenue Sharing Agreement. (Compl. ¶ 6.) Petro alleges Tank-Tek agreed to invoice clients referred to Tank-Tek by Petro, collect the invoices, and remit a share of the profits to Petro. (Compl. ¶ 7.) Petro alleges that Tank-Tek owes Petro \$214,088.07 for invoices through December 11, 2025 but claims damages for breach of the agreement estimated to be over \$500,000. (Compl. ¶¶ 10, 20.)

Tank-Tek filed a cross-complaint against Petro, alleging five causes of action. Tank-Tek alleges it had a "long-standing business relationship" with Petro, and that it had an oral contract with Petro to act as Petro's subcontractor for underground storage tank inspection, compliance and repairs. (X-Compl. ¶ 5.) It alleges that within the last two years, there was an accrued amount owing to Tank-Tek of \$407,884.69. (X-Compl. ¶¶ 5, 6, 8, 10, 13.) Tank-Tek alleges a claim for breach of an oral contract (1st C/A), account stated (2nd C/A), open book account (3rd C/A), goods and services rendered (4th C/A), and unjust enrichment (5th C/A).

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the cross-complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) In ruling on the demurrer, the Court does not consider evidence outside the pleading, except matters subject to judicial notice. (*Carlson v. County of Alameda* (2015) 242 Cal. App.4th 116, 123; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

In determining whether the complaint states a cause of action, the Court evaluates "whether a cause of action has been stated under any legal theory. [Citation omitted.]" (*Gomez v. Regents of University of California* (2021) 63 Cal.App.5th 386, 391.) (See also *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38 ["If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer."].) If there is a reasonable possibility of amendment to cure the deficiencies in a complaint, then leave to amend must be granted. (*Quelimane Co., supra*, 19 Cal.4th at 39.)

Analysis

Petro makes general demurrers to the second, third and fifth causes of action, and special demurrers